

The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Act, 1972

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The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Act, 1972

UNION OF INDIA

India

The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Act, 1972

Act 24 of 1972

Published on 6 June 1972

Commenced on 6 June 1972

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The Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Act, 1972

Act

No. 24 of 1972

1280.

The State of Nagaland comprises the three districts of Tuensang, Kohima and Mokokchung. The Prevention of Food Adulteration Act 1954, does not apply to Kohima and Mokokchung districts, because at the time of passing of that Act, those districts formed the Naga Hills district which was mentioned in Part A of the Table below para. 20 of the Sixth Schedule to the Constitution. As no District Council had been constituted for Naga Hills district, the administration of that district vested in the Governor of Assam, and as under para. 19(1)(a) of that Schedule, where the administration of an

area is vested in the Governor, no Act of Parliament could apply to that area unless the Governor by public notification so directs. The Prevention of Food Adulteration Act 1954, did not apply proprio vigore to the Naga Hills District. The Act, however, applies to the Tuensang district which is the same as the Naga Tribal Area originally mentioned in Part B of the Table below para 20 of the Sixth Schedule to the Constitution, there being no inhibition as to the applicability of any Act of Parliament to the Part B Tribal Areas.

2. The Prevention of Food Adulteration Act, 1954, extends to the whole of India except the State of Jammu and Kashmir and the districts of Kohima and Mokokchung. Legislation for the extension of the Act to the State of Jammu and Kashmir is separately being undertaken.

3. To secure uniform application which would enable the Government of Nagaland to prevent the sale of adulterated sub-standard food containing substances which are harmful and poisonous and thereby protect the health of general public, it has been decided. with the concurrence of the Government of Nagaland, to extend the Prevention of Food Adulteration Act, 1954, to the districts of Kohima and Mokokchung in the State of Nagaland. The Bill seeks to give effect to this object." - See Gazette of India. 22-11-1971. Pt. II, Section 2, extra., p. 729.

[6th June, 1972]

An Act to extend the Prevention of Food Adulteration Act, 1954 to the Kohima and Mokokchung districts in the State of Nagaland.

Be it enacted by Parliament in the Twenty-third year of the Republic of India as follows:-

1.

Short title.

- This Act may be called the Prevention of Food Adulteration (Extension to Kohima and Mokokchung Districts) Act, 1972.

2.

Extension of the Act

37 of 1954

to Kohima and Mokokchung districts in Nagaland.

- The Prevention of Food Adulteration Act, 1954, shall, as from the commencement of shall come into force therein on such date as the Central Government may, by notification in the Official Gazette, appoint.

Enforced w.e.f. 1 1-4-1978 : vide Notification No. S. O. 185(E), dated 30-3-1973, Gazette of India, Extraordinary, Pt. II, Section 3 (ii), p. 599.

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